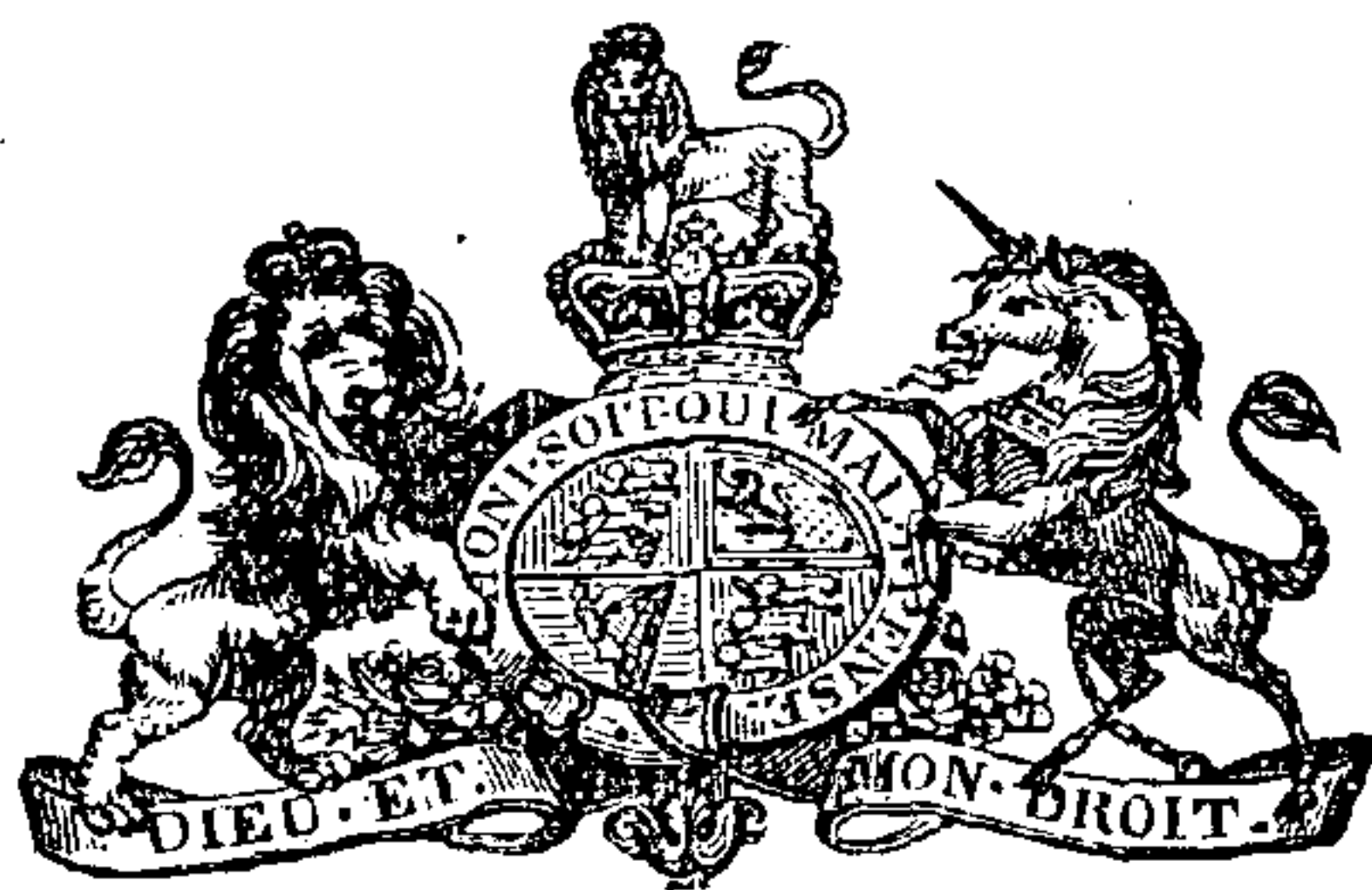




CHAPTER cxlv.

An Act to alter the numbers and boundaries of the wards of the Borough of Preston and to enable the mayor aldermen and burgesses of the said borough to reconstruct their existing and to construct additional tramways in and adjacent to the borough and to make further provisions for the good government of the borough. A.D. 1900.
[30th July 1900.]

WHEREAS the county borough of Preston (herein-after called "the borough") is subject to the Acts relating to municipal corporations and under the government of the mayor aldermen and burgesses of the borough (herein-after called "the Corporation") acting by the council :

And whereas the several local Acts mentioned in the First Schedule to this Act or parts thereof are (among others) in force within the said borough which Acts are in this Act referred to collectively as "the former Acts" and each of them separately as an Act of the year in which the same was passed :

And whereas the borough is divided into six wards but owing to the increase of population and buildings therein inequalities exist in the population and rateable value of the various wards and it is expedient to re-divide the borough into wards as by this Act provided :

And whereas under statutory powers the Corporation have constructed and acquired various tramways in the borough which are worked by their lessees under a lease which will expire on the first day of January one thousand nine hundred and four :

And whereas it is expedient that the Corporation should be authorised subject to the terms of the said lease to reconstruct their existing tramways so as to adapt them for the use of mechanical power and also to construct additional tramways in the borough and that provisions as in this Act contained should be sanctioned

A.D. 1900. for improving tramway communication between the borough and adjacent districts :

And whereas it is expedient that the Corporation should be empowered to run carriages on any tramways for the time being belonging to or leased by them or over which they may have running powers and to take charges for the use of such carriages :

And whereas it is expedient that the Corporation be authorised to construct the street improvement connected therewith herein-after described and in this Act referred to as "Street Work" :

46 & 47 Vict.
cap. cxv.

And whereas by the Act of 1883 the Corporation were authorised to exercise their statutory borrowing powers by the creation and issue of Corporation Redeemable Stock :

And whereas it is expedient that further borrowing powers be conferred on the Corporation for the purposes of this Act and that the provisions of the former Acts with respect to the mode of repayment of borrowed moneys be enlarged :

And whereas it is expedient that other provisions as are in this Act contained should be sanctioned :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of land and for and in relation to the construction of the tramways and work by this Act authorised and such estimates are as follows :—

For the construction of the tramways one hundred and thirteen thousand four hundred and forty-five pounds ;

For other tramway purposes fifty thousand pounds :

And whereas the several works included in such estimates respectively are permanent works within the meaning of the two hundred and thirty-fourth section of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the council at a meeting held on the sixteenth day of November one thousand eight hundred and ninety-nine after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Preston Herald a newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough rate of the borough :

And whereas such resolution was published twice in the Preston Guardian a newspaper published and circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twenty-fifth day of January one thousand nine hundred being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines situation and levels of the tramways and work by this Act authorised and of the lands acquired compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Lancaster and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.—PRELIMINARY.

1. This Act may be cited as the Preston Corporation Act 1900.

Short title.

2. This Act is divided into Parts as follows:—

Act divided into Parts.

Part I.—Preliminary.

Part II.—Alteration of wards.

Part III.—Tramways.

Part IV.—Street work.

Part V.—General provisions common to tramways and street work.

Part VI.—Lands.

Part VII.—Milk supply.

Part VIII.—Ice creams.

Part IX.—Sanitary provisions.

Part X.—Advertisement hoardings &c.

Part XI.—Finance and rates.

Part XII.—Miscellaneous.

3. The Lands Clauses Acts and section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 so far as the same

Incorporation of general Acts.

A.D. 1900. — are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act.

Interpre-
tation.

4. In this Act unless the subject or context otherwise require—
Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings ;

“ The borough ” means the county borough of Preston ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The council ” means the town council of the borough ;

“ The town clerk ” means the town clerk of the borough ;

“ The medical officer ” and “ the inspector of nuisances ” respectively mean the medical officer of health and any inspector of nuisances appointed by the council in pursuance of the powers of the former Acts or any public Act and “ medical officer ” shall include any deputy medical officer of health duly appointed ;

“ The borough fund ” and “ the borough rate ” respectively mean the borough fund and the borough rate of the borough ;

“ The district fund ” and “ the general district rate ” respectively mean the district fund and the general district rate of the borough ;

“ Loans fund ” means the loans fund under the provisions of the Act of 1883 ;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money (except any security of the Corporation) and any other mortgage bond debenture debenture stock Corporation stock or other security issued by any local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation annuities rentcharges and securities transferable by delivery ;

“ The tramways ” means the tramways by this Act authorised ;

“ The tramway undertaking ” means the tramway undertaking of the Corporation for the time being authorised ;

“ The Corporation tramways ” includes the tramways and any tramways for the time being belonging or demised to or worked by the Corporation ;

“ Tramway revenue ” means all revenue of the tramway undertaking ;

“Channels” means and includes channels passages and tubes for ropes cables wires and electric lines ;

“Mechanical power” includes steam electrical and every other motive power not being animal power ;

“Engine” includes motor ;

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from any point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” shall also include any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any building structure or erection of any kind or on or over any street or public way but shall not be deemed to include (i) any flagstaff or pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement (ii) any sign on any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or the cornice or blocking course of any wall or to the ridge of a roof provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported (iii) any such word letter model sign signal device or representation as aforesaid which relates exclusively to the business of a railway company and which is placed or may be placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and which is also so placed that it could not fall into any street or public place ;

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and any Act amending the same ;

“The Public Health Acts” means the Public Health Act 1875 and any Act amending the same ;

“Owner” has the same meaning as it has in the Public Health Act 1875.

A.D. 1900.

PART II.—ALTERATION OF WARDS.

Commence-
ment of
this Part of
this Act.

5. This Part of this Act shall come into force for the following purposes at the following dates respectively (that is to say) :—

- (1) For the purposes of the division of the borough into wards and for all proceedings or things to be done or taken in or towards the preparation revision and completion of the burgess list burgess roll or other list to be made under the Municipal Corporations Acts and the Registration Acts and for all purposes of nominations for or otherwise preliminary or incidental to municipal or other elections (including the appointment of polling districts) to be held in or after November one thousand nine hundred immediately on the passing of the Act; and
- (2) For the purposes of any such burgess list burgess roll and other lists and of the functions of overseers and the mayor and town clerk under the Municipal Corporations Acts and the Registration Acts in relation thereto respectively and for the purposes of occupation rating or any other matter of qualification the wards of the borough as set forth in the Second Schedule to this Act shall be deemed to have always been the wards of the borough and for those purposes this Act and the Municipal Corporations Acts and the Registration Acts shall have effect as if the provisions of this Part of this Act took effect on and after the passing of this Act:
- (3) No lists or registers or the burgess roll to be so made as aforesaid shall be deemed to be invalid by reason only that the same shall not have been made and published or any notices given at the time or times required prior to the passing of this Act if such lists registers roll or notices be given made and published as soon after the passing of this Act as may be practicable:
- (4) If any difficulty arise in making out revising or otherwise dealing with such lists registers and roll the council of the borough may (having regard to the special circumstances of the case) make such order as shall appear to them to be necessary to give effect to the provisions of this Act and may vary so far as shall be necessary the provisions in force with regard to such lists roll and registers.

Repeal of
s. 10 and
Schedule II. of
Act of 1880.

6. Section 10 (Wards &c. in extended borough) of the Act of 1880 and the Second Schedule of that Act is hereby repealed.

7. The boundaries of the borough shall be and continue as the same existed at the date of the passing of this Act and the borough shall be divided into twelve wards having respectively the names and boundaries set forth in the Second Schedule to this Act and a ward plan showing the boundaries of the borough and the names and boundaries of the said wards signed by the Right Honourable the Earl of Morley the Chairman of Committees of the House of Lords (in this Act called "the borough plan") shall within two weeks after the passing of this Act be deposited in the Office of the Clerk of the Parliaments in the Private Bill Office of the House of Commons and with the town clerk at his office and copies thereof certified by the town clerk shall be sent as soon as may be after such deposit to the Board of Agriculture and to the Local Government Board and to the Inland Revenue Department.

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Boundaries
of the
borough
and wards.

In case of any discrepancy between the description of the borough and wards in the Second Schedule to this Act and in the borough plan the description in the borough plan shall prevail.

8. Copies of the borough plan or any extract therefrom certified by the town clerk to be true shall be received in all courts of justice or elsewhere as *prima facie* evidence of the contents of such plan and such plan shall at all reasonable times be open to the inspection of the persons liable to rates imposed by the Corporation and all persons so liable shall be entitled to a copy of or extract from such plan certified by the town clerk upon payment of a reasonable fee for every such copy or extract.

Copies of
borough plan
showing
boundaries to
be evidence.

9. The borough shall continue to have twelve aldermen and thirty-six councillors and each ward shall return three councillors.

Number of
aldermen and
councillors.

10. All aldermen of the borough holding office at the date of the commencement of this Part of this Act shall continue to hold office and be subject to the same regulations as to retirement and rotation as if this Act had not passed and subject to the provisions of this Act all elections vacations of office and rotations shall be regulated and governed by the Municipal Corporations Acts and other Acts for the time being in force with respect thereto respectively.

Election of
aldermen.

11. Subject as herein-after is provided the council shall on or before the first day of October one thousand nine hundred assign the councillors of the borough who do not retire in rotation on the first day of November one thousand nine hundred to the several wards of the borough as described in the Second Schedule to this Act not exceeding two councillors to each ward and the councillors so assigned shall for all purposes including retirement and rotation on and from the first day of November one thousand nine hundred be deemed to be councillors for the wards of the borough to which

Election of
councillors.

A.D 1900. they may be assigned and shall be subject to the like regulations as to retirement and rotation as they were under with respect to the wards of the borough as constituted at the date of the passing of this Act and subject to the provisions of this Act all elections vacations of office and rotations shall be regulated and governed by the Municipal Corporations Acts and other Acts for the time being in force with respect thereto respectively. Provided that if at the date when the council assign the said councillors as herein-before provided there be any vacancy amongst such councillors the council shall specify to which of the said wards the vacancy shall be deemed to apply as from the date of the commencement of this Part of this Act and no election to fill any vacancy amongst the councillors of the borough shall be held between the date of the passing of this Act and the commencement of this Part of this Act.

Saving for
45 & 46 Vict.
cap. 50 s. 30.

12. Notwithstanding anything in this Act section 30 of the Municipal Corporations Act 1882 (Proceedings for division of boroughs into wards or alteration of wards) and any enactment substituted for or amending the same shall continue to apply to the borough.

PART III.—TRAMWAYS.

Power to
make
tramways.

13. Subject to the provisions of this Act the Corporation may if they think fit lay down use and maintain wholly in the borough in the lines and situations and according to the levels shown on the deposited plans and sections the tramways herein-after described with all necessary and proper rails plates sleepers channels junctions turntables turn-outs crossings passing places stables carriage houses engine boiler and dynamo houses sheds buildings engines dynamos works and conveniences connected therewith respectively.

The following are the tramways herein-before referred to and authorised by this Act :—

Tramway No. 1 2 miles 7 furlongs 7 · 45 chains in length whereof 1 mile 7 furlongs 7 · 75 chains will be double and 7 furlongs 9 · 70 chains will be single commencing in Broadgate at a point 36 feet in a northerly direction from the end of the south-westerly wing wall of the Penwortham Bridge Approach proceeding thence along Fishergate Church Street and Stanley Street and terminating in New Hall Lane opposite the easternmost gate of the pleasure gardens ;

Tramway No. 2 a single line 1 · 50 chains in length being a cross-over to Tramway No. 1 commencing and terminating at points in Tramway No. 1 respectively 3 chains and 4 · 50 chains from the commencement thereof ;

Tramway No. 3 a single line 1·50 chains in length being a cross-over to Tramway No. 1 commencing and terminating at points respectively 4·50 chains and 3 chains from the termination of Tramway No. 1;

Tramway No. 4 1 mile 3 furlongs 1·10 chains in length whereof 1 mile 1 furlong 8·45 chains will be double and 1 furlong 2·65 chains will be single commencing by a junction with Tramway No. 1 in Church Street at a point·66 chains west of the junction therewith of Lancaster Road and terminating in Garstang Road at the boundary between the borough and the urban district of Fulwood;

Tramway No. 5 a single line 1·50 chains in length being a cross-over to Tramway No. 4 commencing and terminating at points in Tramway No. 4·12 chains south of the junction of Jacson Street with Lancaster Road and 1·38 chains north of that junction;

Tramway No. 6 a double line 1·15 chains in length being a connexion between Tramways No. 1 and No. 4 commencing in Church Street at a point about·66 chains east of the junction therewith of Lancaster Road and terminating in Lancaster Road at a point about·76 chains north of the said junction;

Tramway No. 8 1 mile 0 furlongs 6·75 chains in length whereof 7 furlongs 1·10 chains will be double line and 1 furlong 5·65 chains will be single line commencing at the point where the said boundary between the borough and the urban district of Fulwood crosses Deepdale Road and terminating by a junction with Tramway No. 1 in Church Street at a point about·60 chains north-east of the junction therewith of Park Road;

Tramway No. 9 a single line 1·50 chains in length being a cross-over to Tramway No. 8 commencing and terminating at points respectively 1 chain and 2·5 chains south of the junction of Moor Park Avenue with Deepdale Road;

Tramway No. 10 1 mile 1 furlong 5·30 chains in length whereof 5 furlongs 2·90 chains will be double line and 4 furlongs 2·40 chains will be single line commencing by a junction with Tramway No. 4 in Lancaster Road at a point about·60 chains south of the junction therewith of Harris Street proceeding thence along Harris Street Market Place Friargate Fylde Street Fylde Road and Water Lane and terminating at a point about·35 chains east of the junction of Bray Street with Tulketh Road;

Tramway No. 11 a double line 4·80 chains in length commencing by a junction in Water Lane with Tramway No. 10 at a point about·76 chains west of the junction with Wellington Street

A.D. 1900.

West thence along Water Lane and proceeding south-west to the site for the proposed car shed and generating station at the corner of Water Lane and road to dock ;

Tramway No. 12 a circular route 1 mile 3 furlongs 8·25 chains in length whereof 2 furlongs 1 chain will be double line and 1 mile 1 furlong 7·25 chains will be single line commencing in Water Lane by a junction with Tramway No. 10 at its termination and proceeding thence along Water Lane Tulketh Road Ashton Long Lane Waterloo Road and Bray Street and terminating at its point of commencement in Water Lane ;

Tramway No. 13 4 furlongs 8·65 chains in length whereof 4 furlongs 4·90 chains will be double line and 3·75 chains will be single line commencing in Stanley Street by a junction with Tramway No. 1 at a point about ·54 chains north-west of the junction of Stanley Street and London Road and proceeding thence along London Road and terminating at the point where the boundary between the county borough of Preston and the urban district of Walton-le-Dale crosses Walton Bridge ;

Tramway No. 15 6 furlongs 7·10 chains in length whereof 3 furlongs 9·90 chains will be double line and 2 furlongs 7·20 chains will be single line commencing by a junction with Tramway No. 1 in Fishergate at a point about ·38 chains west of the junction of Corporation Street and Fishergate and terminating by a junction in Garstang Road with Tramway No. 4 at a point about 2 chains north of the junction therewith of Moorbrook Street ;

Tramway No. 16 6·40 chains in length whereof 1·20 chains will be double line and 5·20 chains will be single line commencing by a junction with Tramway No. 15 in Corporation Street at a point about ·73 chains south-east of the junction therewith of Canal Street and terminating in Fylde Road by a junction with Tramway No. 10 at a point about 1·42 chains north-west of the junction therewith of Maudland Road ;

Tramway No. 17 1 mile 4 furlongs 2 chains in length whereof 3 furlongs 9·50 chains will be double line and 1 mile 0 furlongs 2·50 chains will be single commencing by a junction with Tramway No. 8 in Mill Bank at a point about ·40 chains south-west of the junction therewith of Deepdale Road and terminating at a point in Ribbleton Lane 1·25 chains north-east of the north-easterly corner of the Bowling Green Inn Ribbleton Lane.

Gauge of tramways.

14. The Tramways shall be constructed on a gauge of 4 feet Provided always that so much of section 34 of the Tramways Act

1870 as limits the extent of the carriage used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet and six inches in width. A.D. 1900.

15. The tramways mentioned in the first column of the following table shall not be constructed unless and until the carriageway of the streets mentioned in the second column thereof is so widened that a space of not less than nine feet six inches shall intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway :—

Certain tramways not to be laid until streets widened.

Number of Tramway.	Streets.
1	Broadgate
4	New Hall Lane
8	North Road
10	Deepdale Road
12	Harris Street
	Fylde Road
15	Tulketh Road
	Tulketh Road and Ashton Long Lane
	Waterloo Road
	Bray Street
17	Corporation Street
	Canal Street
	Ribbleton Lane

16. If the tramways be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the tramways respectively as is then completed. Time for completion of tramways.

17. For the purposes of constructing any tramway in any street within the borough the Corporation may increase the width of the roadway of such street by reducing the width of the footway on each or either side of such street Provided that no footway be so reduced as to be less than six feet wide. Corporation may reduce width of footway for constructing tramway.

18. No part of the tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

A.D. 1900.

Tramways
to be kept
on level of
surface of
road.

19. If and whenever the Corporation alter the level of any road along or across which any part of any of the tramways is laid or authorised to be laid they shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered and any cost incurred in carrying out any such alteration of the tramways consequent upon the alteration of any road shall in the first instance be defrayed out of the tramway revenue.

As to rails
of tramways.

20. The rails of the tramways shall be such as the Board of Trade may approve.

Plan of
proposed
mode of
construction.

21. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall before they proceed to open or break up any road for the purpose of constructing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Penalty for
not main-
taining rails
and roads.

22. The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the sub-structure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

23. Where in any road in which a double line of tramway is laid there shall be a less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall and they are hereby required to construct a passing place or places connecting the one tramway with the other and by means of such passing place or places the traffic shall when necessary be diverted from one tramway to the other.

A.D. 1900.

Passing places to be constructed where less than a certain width left between footway and tramway.

24. The Corporation may subject to the provisions of this Act (but as to any tramways without the borough only with the consent of the local authority and road authority of the district in which they are laid) make maintain alter and remove such crossings passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any warehouses stables or carriage-houses depôts engine-houses generating stations or works of the Corporation. Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention express their objection thereto.

Power to make additional crossings &c.

25. Where by reason of the execution of any work affecting the surface and soil of any road along which any of the tramways is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may construct on the same or any adjacent road and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Temporary tramway to be made where necessary.

26. The Corporation may form junctions between the Corporation tramways and any tramways within or without the borough which can be worked in connexion therewith but only with the consent of the owners and lessees of such tramways and as to such of them as may be without the borough with the consent of the local and road authority within whose jurisdiction such junctions would be formed.

Junctions with tramways which can be worked in connexion with Corporation tramways.

A.D. 1900.

Power to lay down double or interlacing lines in place of single lines and vice versa.

27. The Corporation in any street within the borough (and in any district without the borough with the consent of the local and road authority of such district) in which they have laid down or are authorised to lay down a single line of tramway may with the consent of the Board of Trade in lieu thereof lay down a double line or an interlacing line of tramway and in any street in which they have laid down or are authorised to lay down a double line or an interlacing line of tramway they may with the like consent of the Board of Trade in lieu thereof lay down a single line of tramway and if at any time after the construction of any tramway of the Corporation the street in which the same is laid has been or shall be altered or widened the Corporation may take up and remove such tramway or any part thereof and reconstruct the same in such position in the said street as they think fit. Provided that in the exercise of the powers of this section no rail shall except with the consent of the Board of Trade be so laid that a less space than nine feet six inches shall intervene between such rail and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the houses shops or warehouses abutting upon the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention express their objection thereto.

Provisions as to motive power.

28. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power:

(3) The Corporation or any company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or any company or person using mechanical power have or has made default in complying

with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; and

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public; and may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

29. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:—

Special provisions as to use of electrical power.

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the

A.D. 1900.

currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :

- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Corporation.

Power to
adapt tram-
ways for
use of
mechanical
power.

30. Subject to the provisions of this section the Corporation may exercise the following powers (that is to say) :—

They may make such alterations of the Corporation tramways and may execute all such works on or in connexion therewith and in over or under the roads in which the same are laid as may be necessary or expedient for adapting the same to be worked by mechanical power and they may lay down construct and maintain on in under or over the surface of any road such posts conductors wires tubes mains plates cables ropes and apparatus and may make and maintain such openings and ways in on or under any such surface as may be necessary or convenient either for the working of the Corporation tramways or for connecting any tramways within or without the borough with any tramways within or without the borough which can be worked in connexion with any of the Corporation tramways or for providing access to or forming connexions with any generating station or stations engines machinery or apparatus :

Provided that in the following cases the following consents in writing shall be necessary to enable the Corporation to exercise the power (that is to say):—

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If the power affects any tramway not belonging to the Corporation the consent of the owner and lessee (if any) of such tramway ;

If the power affects any road without the borough the consent of the authority having jurisdiction over such road.

31. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways by mechanical power Provided that—

Power to attach brackets &c. to buildings.

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after the owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

32. All works to be executed by the Corporation in any road for working the tramways by mechanical power in pursuance of the powers of this Act shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Mechanical power works to be subject to section 30 of Tramways Act 1870.

33.—(1) The powers conferred on the Corporation by the Tramways Act 1870 to purchase tramways within the borough by

Power to Corporation to purchase

(A.D. 1900.

tramways
outside the
borough.

agreement is hereby extended so as to authorise the Corporation to purchase (by agreement with the owners and lessees (if any) thereof and with the consent of the local authority in whose district they are situate) any tramways outside the borough which form or may form continuations of authorised tramways at any time existing within the borough or which can be worked in connexion therewith and the Corporation may by agreement and with such consent as aforesaid in lieu of purchasing take a lease of any such tramways without the borough.

(2) Nothing in this section shall take away alter or prejudice the right of the local authority in any adjacent district to purchase the tramways in that district under and in accordance with the provisions of section 43 of the Tramways Act 1870 and if the Corporation purchase any tramways in any adjacent district from the local authority thereof such local authority may repurchase the same under and in accordance with the provisions of the said section and in construing that section for the purposes of this section the Corporation shall be deemed the promoters of such tramways.

(3) Any sale effected by a local authority under the provisions of this section shall be only in consideration of a sum in gross and such sum shall be applied by the local authority to whom the same is payable in extinguishment of any loan borrowed by that authority for the purposes of the tramways so sold or shall be added to the sinking fund established for the payment of such loan Provided that such moneys shall not be applicable to the payment of instalments or to payments required to be made to the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board Provided also that borrowed money so discharged shall not be reborrowed.

Agreements
for working
&c.

34. The Corporation may enter into and carry into effect contracts and agreements with the owner and lessee of any tramways in any adjacent district which can be worked with any of the Corporation tramways and the local authority of such district with respect to the working use management and maintenance by the contracting parties of all or any of their respective tramways and works or any part or parts thereof respectively the making of all necessary junctions the supply under any agreement for all or any of the respective tramways of the contracting parties being worked by the other of them as aforesaid of rolling stock plant machinery and electrical energy or power necessary for the purposes of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of such working use management and maintenance the

interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent. A.D. 1900:

35. The Corporation may with the approval of the Board of Trade enter into and carry into effect agreements with any local authority company body or person authorised to produce or supply electric energy for the supply of electric energy for any of the purposes of this Act to and by the Corporation by and to such local authority company body or person: Power as to supply of electric energy.

Provided that any agreement for such supply to the Corporation shall be subject to the provisions of the Acts or Orders under which the local authority company body or person are authorised to supply electric energy.

36. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of any of the Corporation tramways and in respect of the use of such carriages and may provide such tramway plant (including in that word stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences) as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and may sell exchange or dispose of such of the before-mentioned articles and things as from time to time may no longer be required. Power to Corporation to work tramways.

37. The tramways may if the Corporation think fit be used for the conveyance of animals goods and parcels. Traffic on tramways.

38. The following sections (relating to tramways) of the Act of 1880 (that is to say):— Incorporation of sections of the Act of 1880 relating to tramways.

Section 39 (Corporation may use tramways for sanitary purposes &c.);

Section 40 (Tolls for passengers);

Section 41 (Tolls for animals goods &c.);

Section 42 (Regulations as to tolls);

Section 44 (Tolls to be inclusive);

Section 45 (Passengers' luggage);

Section 46 (As to user of tramways and tolls thereon when left open to be used by the public);

Section 47 (Tolls if tramways left open to be used by the public);

A.D. 1900.

Section 48 (Persons using the tramways to permit servants of the Corporation to ride in each carriage &c. free of charge);

Section 49 (Certain provisions of the Tramways Act 1870 as to licences extended to persons using the tramways when left open to be used by the public);

Section 50 (Company or lessees not to be bound to carry goods &c. unless as provided herein);

Section 51 (Provisions as to carriage of goods &c.);

Section 52 (As to payment of tolls);

Section 53 (Provisions as to arbitration); and

Section 54 (Penalties under the tramway provisions);

shall so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the tramways by this Act authorised.

Lands for
generating
stations.

39. Subject to the provisions of this Act the Corporation may appropriate and use the lands described in the Third Schedule to this Act and which form part of the dock undertaking of the Corporation for the purpose of constructing thereon a station or stations for generating electrical energy and for providing and working thereon engines dynamos and other electrical plant and works and may construct and maintain upon such lands a station or stations for generating electric energy and may provide and work thereon engines dynamos and other electric plant and works and may by means thereof produce use and supply such energy for any of the purposes of this Act but nothing in this Act shall authorise the Corporation to generate electrical energy elsewhere than on the lands so described.

The Corporation shall annually pay out of the tramway revenue to the credit of the harbour revenue a reasonable sum by way of rent for the use of the said lands.

As to fares
on Sundays
and holidays.

40. The Corporation shall not take or demand on Sunday or any public holiday any higher tolls or charges than those levied by them on ordinary week days.

Cheap fares
for labouring
classes.

41.—(1) The Corporation or their lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of a mile On Saturdays the Corporation or their lessees

in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes. A.D. 1900.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation or their lessees to provide such service as may appear to the Board to be reasonable.

(3) The Corporation or their lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

42. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough or by the Corporation or by the local authority of any district outside the borough in which any of the tramways are laid that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Act authorised. Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Corporation or their lessees. Periodical revision of rates and charges.

43. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :— Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

A.D. 1900.

For regulating the emission of smoke or steam from engines used on the tramways ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere ;

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Amendment
of the Tram-
ways Act
1870 as to
byelaws
by local
authority.

44. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Act but the Corporation may if they think fit make byelaws under the provisions of the Tramways Act 1870 for restricting the rate of speed to a lower rate than that so authorised.

For pro-
tection of the
Postmaster-
General.

45.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of any of the Corporation tramways being worked by electrical energy the following provisions shall have effect :—

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric

A.D. 1900.

lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Corporation have constructed their electric lines or other works or work their undertaking in contravention of this sub-section such question shall be determined by arbitration and the Corporation shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3)—(A) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

(B) Any difference which arises between the Postmaster-General and the Corporation or their agents with respect to any requirements so made shall be determined by arbitration :

(4) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

(5) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if

A.D. 1900.

they satisfy the court having cognisance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

(6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

(7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :

(8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

(9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :

(10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :

(11) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

Carrying of
mails by
Corporation.

46. The Conveyance of Mails Act 1893 shall extend and apply to any tramways owned or worked by the Corporation as if such tramways had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three but as to existing tramways only after the expiration of the subsisting leases thereof.

Orders &c.
of the Board
of Trade.

47. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

48. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised in respect of any of the tramways.

A.D. 1900.

Provisions
as to general
Tramway
Acts.

49. The following provisions for the protection of the London and North Western Railway Company and the Lancashire and Yorkshire Railway Company in respect of any railway (including the Ribble branch) sidings canal towing path or works jointly owned by them or separately owned by the London and North Western Railway Company (both of which companies in respect of their joint property and the London and North Western Railway Company in respect of their separate property are herein-after referred to as "the company") shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say) :—

For protec-
tion of
the London
and North
Western and
Lancashire
and York-
shire
Railway
Companies.

(1) Where any tramway to be constructed under the powers of this Act or any tramway in respect of which the powers conferred by the section of this Act of which the marginal note is "Power to adapt tramways for use of mechanical power" are to be exercised is laid upon or over any tunnel or bridge carrying any road over any railway or canal of the company the Corporation shall so construct and maintain the same or so exercise the said powers as the case may be as not to alter or interfere with the structure of any such tunnel or bridge or of the approaches thereto :

(2) In the event of any injury being caused to any such tunnel or bridge or the approaches thereto by the construction maintenance repairing user or removal of the said tramways or by the exercise of any of the said powers the company may at the reasonable expense of the Corporation forthwith in cases of emergency and in other cases after giving seven clear days notice in writing of their intention so to do restore such tunnel or bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned and the Corporation shall indemnify the company against all sums costs and expenses which they may pay or be put to in repairing so much of the road upon or over such tunnel or bridge and the approaches as the Corporation are liable to repair under section 28 of the Tramways Act 1870 and the company may recover from the Corporation all such sums costs and expenses :

(3) All works which may be necessary in constructing and maintaining any of the said tramways upon or over any such

A.D. 1900.

tunnel or bridge and the approaches thereto shall be constructed and maintained in all things at the expense of the Corporation and to the reasonable satisfaction of the engineer of the company :

(4) In case it shall become necessary in consequence of the existence or user of any of the said tramways to strengthen the fabric of any such tunnel or bridge the company may after giving to the Corporation seven clear days' notice thereof execute such works as may be necessary but in all things at the reasonable expense of the Corporation and the company may recover from the Corporation all moneys expended by them in the execution of such works as aforesaid :

(5) If it shall become necessary for effecting such strengthening that the working and use of any portion of any of the said tramways shall be wholly or in part stopped or delayed and the company shall except in cases of emergency give the Corporation seven clear days' notice requiring such stoppage or delay the working or use of such portion of the said tramways shall be stopped or delayed accordingly but only for so long as may be necessary for effecting such strengthening and the company shall not be liable for any compensation claims demands damages costs or expenses for or in respect of such stoppage or delay :

(6) In making and maintaining in on or under the surface of any road such openings and ways (in this sub-section referred to as "works") as may be necessary or convenient for the working or user of the Corporation tramways by mechanical power the following provisions shall be in force and have effect and be binding upon the Corporation and their assigns :—

(A) The Corporation shall not (except with the consent in writing of the company) in any way alter or interfere with the structure of any tunnel or bridge carrying any road over any railway or canal of the company or of the approaches to such bridge and they shall so make and maintain such works in on or over any such bridge and the approaches thereto, as not injuriously to affect the same ;

(B) In the event of any injury being caused to any such tunnel or bridge or the approaches thereto by the making and maintaining user or removal of such works the company may at the expense of the Corporation forthwith in case of emergency and in other cases after giving seven clear days' notice of their intention so to do restore any such bridge or approaches or the part or parts thereof

which may be so injured to as good a state and condition as they were in before such injury was occasioned ;

(c) All works which may be necessary in making and maintaining any of the said works in on or over any tunnel bridge works or other property of the company shall be constructed and maintained in all things at the reasonable expense of the Corporation and to the reasonable satisfaction of the principal engineer of the company :

(7) Whenever and so often as the company shall require under their existing powers to lengthen strengthen reconstruct alter or repair any such tunnel bridge or approaches and it shall be necessary for effecting any of such purposes that the working and user of any of the said tramways over any such tunnel bridge or approaches shall be wholly or partly stopped or delayed or that the tramways or any of the works connected therewith shall be wholly or in part temporarily diverted taken up or removed and shall except in cases of emergency give to the Corporation seven clear days' notice requiring such stoppage delay or diversion taking up or removal the working or user of the tramways shall be stopped or delayed or the tramways shall be diverted or taken up or removed accordingly by and at the reasonable expense of the Corporation and under the superintendence of the engineer of the company (if such engineer shall give such superintendence) but only for so long as it shall be absolutely necessary for effecting such purpose and the company shall not be liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto In cases of emergency or (in other cases) if the Corporation make default after such notice in diverting taking up or removing the said tramways the company may effect such diversion taking up or removal at the reasonable expense of the Corporation :

(8) The Corporation or any company or person working or using any of the tramways shall not allow any tramcar to stand in front of the approach road or entrance to any railway station or canal wharf so as to obstruct the free access or egress thereto or therefrom.

PART IV.—STREET WORK.

50. Subject to the provisions of this Act the Corporation in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of

Power to
execute
street work.

A.D. 1900. — reference may if they think fit wholly in the borough make and maintain the following street work (that is to say):—

The rounding-off of the corner of the north-east side of Tulketh Road and the south side of Ashton Long Lane at the junction of those two streets commencing at a point in Tulketh Road about twenty-six yards south-east of such junction and terminating in Ashton Long Lane at a point about twenty-six yards north-east of the said junction.

Power of deviation.

51. In constructing the said street work the Corporation may deviate from the centre line shown on the deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet.

Junctions between existing and new streets.

52. Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the street work and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said work and may raise lower or alter any vault arch cellar or area under or adjoining any roadway or footway and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said work or otherwise Provided always that the Corporation shall make to the owners and occupiers of and all other parties interested in any lands or houses injuriously affected by any such interference or alteration full compensation for all damage sustained by them or any of them.

PART V.—GENERAL PROVISIONS COMMON TO TRAMWAYS AND STREET WORK.

Power to make general works.

53. Subject to the provisions of this Act the Corporation may within the limits of deviation shown on the deposited plans make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches sewers drains goits culverts excavations and other works and conveniences connected with the tramways and street work as they may deem necessary.

Certain sections as to works of Act of 1880 &c. incorporated.

54. The following sections of the Act of 1880 (that is to say):—

Section 23 (Power to alter pipes &c.);

Section 26 (Streets disused vested in Corporation);

shall so far as the same are applicable and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to

and in relation to the constructing and maintaining of the tramways and street work by this Act authorised. A.D. 1900.

55. The Corporation may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time The Corporation shall provide reasonable access for all persons so bonâ fide going to or returning from any such house. Temporary stoppage of streets.

PART VI.—LANDS.

56. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they require for the purposes of the tramways and street work by this Act authorised. Power to take lands referenced.

57. And whereas in the construction of the street work hereby authorised or otherwise in exercise of the powers of this Act it may happen that a portion only of the property numbered 1 on the deposited plans in the borough may be sufficient for the purposes of the same and that such portion may be severed from the remainder of the said property without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the said property may if such portion can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such property without material detriment thereto be required to sell and convey to the Corporation the portion only of the property so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portion required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Owners may be required to sell part only of certain property.

58. Section 132 (Correction of errors omissions &c.) of the Act of 1880 shall extend and apply mutatis mutandis to and in relation to the acquisition of the lands by this Act authorised to be acquired by the Corporation and shall be incorporated with and form part of this Act. Certain section as to lands of the Act of 1880 incorporated.

A.D. 1900.

PART VII.—MILK SUPPLY.

Interpretation in this Part of Act.

59. In this Part of this Act—

“Dairy” shall include any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

“Dairyman” shall include any cowkeeper purveyor of milk or occupier of a dairy.

Dairyman to furnish lists of farms supplying milk in certain cases.

60. Whenever it shall be certified to the Corporation by the medical officer that the outbreak or spread of infectious disease is in the opinion of such medical officer attributable to the milk supplied by any dairyman the Corporation may require such dairyman to furnish to them within a time to be fixed by them a full and complete list of the names and addresses of all his customers within the borough and such dairyman shall furnish such lists accordingly and the Corporation shall pay to him for each such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings for each list and every dairyman who shall wilfully or knowingly offend against this enactment shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Penalty for selling milk of diseased cows.

61. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on failing to isolate diseased cows.

62. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to notify cases of tuberculosis.

63. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to take samples of milk.

64.—(1) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing

of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough. A.D. 1900.

(2) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of milk which order any such justice is hereby empowered to make.

65.—(1) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. Power to inspect cows and to take samples of milk.

(2) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(3) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

A.D. 1900.

(4) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(5) If in their opinion the dairyman fails to show cause why such an order may not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or county district in which it is situate.

(6) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(7) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(8) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

(9) The dairyman may appeal against an order of the Corporation under this section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

(10) The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

(11) The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the

appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation. A.D. 1900.

66. The Corporation shall cause to be given public notice of the effect of the foregoing provisions of this Part of this Act and of the subsequent section thereof the marginal note whereof is "Provisions as to retailers of milk" by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix. Notice of provisions of this Part of Act.

67. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise. Procedure.

68. All expenses incurred by the Corporation in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough Provided that no such test shall be applied except with the previous consent of the owner of such cow. Expenses of this Part of Act.

69. This Part of this Act may be carried into execution by a committee of the council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council. Execution of this Part of Act.

70. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other Order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such Order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets. Provisions as to retailers of milk.

A.D. 1900.

PART VIII.—ICE CREAMS.

For regu-
lating manu-
facture and
sale of ice
creams &c.

71. Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the borough:—

(A) Causes or permits ice creams or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

Notice of
provisions
of section;

72. The provisions of the section of this Act the marginal note whereof is "Notice of provisions of this Part of Act" shall extend and apply mutatis mutandis with respect to the provisions of this Part of this Act.

PART IX.—SANITARY PROVISIONS.

Yards to be
flagged.

73. If any yard or open space in connexion with any dwelling-house erected before the passing of this Act shall not be so formed flagged or laid with any material or preparation approved by the Corporation as to allow of the surface water being carried off to the drains of such house the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form flag or lay such yard or open space for at least three hundred square feet immediately adjoining such house so as to allow of the surface water being carried off to the drains of such house and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Corporation and if such owner shall make default in complying with any of such requirements to the satisfaction of the Corporation within the respective times aforesaid the Corporation may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and shall be recoverable summarily.

Improper
construction
or repair of

74. If after the passing of this Act a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or

dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds:

A.D. 1900.
watercloset
or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

75.—(1) For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of nine months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Corporation but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Defining the
establishing
of a new
business
(section 112
Public
Health Act
1875).

(2) The provisions of the section of this Act the marginal note whereof is "Notice of provisions of this Part of Act" shall extend and apply mutatis mutandis with respect to the provisions of this section.

76. The powers of the Corporation under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at large and to provide and maintain in proper and convenient situations lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and any such

Public con-
veniences
and lava-
tories.

A.D. 1900. lavatories for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper.

PART X.—ADVERTISEMENT HOARDINGS &c.

Restriction
on hoardings.

77.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(2) It shall not be lawful to erect any such hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine.

(3) The owner or other person using any such hoarding wall or similar structure for advertising purposes whether erected before or after the commencement of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and if any papers affixed for advertising purposes to such hoarding wall or similar structure fall away or become detached shall forthwith remove and clear away such papers.

(4) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable in like manner as a penalty under this Act.

Sky signs.

78.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed:

Provided that in any of the following cases a licence of the Corporation under this sub-section shall become void namely:—

- (i.) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor;
- (ii.) If any change be made in the sky sign or any part thereof;
- (iii.) If the sky sign or any part thereof fall either through accident decay or any other cause;
- (iv.) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof; or
- (v.) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

79. It shall not be lawful in any street in the borough to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Corporation which consent shall be in writing and may be for such time and contain such terms and conditions as the Corporation think fit.

Restriction
on advertis-
ing vehicles.

Any person who acts in contravention of any of the provisions of this section or who violates any condition or the terms of any consent given in pursuance of the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Any person aggrieved by the refusal of the Corporation to grant such consent or by the terms and conditions imposed may appeal to a court of summary jurisdiction held for the district after the expiration of two clear days after the decision of the Corporation is notified to him provided he give twenty-four hours' notice of such appeal and the grounds

A.D. 1900. thereof to the town clerk and the court shall have power to make such order as to them may seem fit and to award costs such costs to be recoverable in like manner as a penalty under this Act.

PART XI.—FINANCE AND RATES.

Power to borrow.

80. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on the security of the tramway revenue borough fund and borough rate and for the following purposes the following sums (that is to say):—

- (A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose;
- (B) For the purpose of constructing the tramways by this Act authorised any sum not exceeding one hundred and thirteen thousand four hundred and forty-five pounds;
- (C) For the purchase of any tramways under the powers of this Act the sum requisite for the purpose;
- (D) For and in relation to other tramway purposes any sums not exceeding fifty thousand pounds:

And in calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and reborrowing shall not be restricted by any of the provisions of the Public Health Acts the Municipal Corporations Acts or the Local Government Act 1888:

Provided that the total amount which may be borrowed under this Act shall not exceed three hundred thousand pounds.

Provision as to mortgages.

81. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say):—

- Section 236 (Form of mortgage);
- Section 237 (Register of mortgages);
- Section 238 (Transfer of mortgages); and
- Section 239 (Receiver may be appointed in certain cases).

As to moneys raised by Corporation stock.

82.—(1) The amount of the annual sums payable to the loans fund under the Act of 1883 towards the redemption of stock created and issued by the Corporation for the purposes of this Act shall be such as with accumulations at a rate not exceeding three per centum per annum will suffice to redeem at par such stock within the period prescribed by this Act from the time or respective times of the original borrowings.

(2) The sums payable in each year to the said loans fund under the Act of 1883 for payment of dividends on and towards redemption of such stock shall be provided if issued for any purpose relating to tramways out of the revenue of the tramway undertaking and if and so far as that revenue proves insufficient for the purpose the deficiency shall be provided out of the tramway reserve fund and subject thereto out of the borough rate. A.D. 1900.

83. The tramway revenue shall be applied—

Application
of revenue
of tramway
undertaking.

(1) In maintaining the tramways and so much of the streets in which the same are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870;

(2) In paying all working and other expenses (including any rent payable under any lease granted to the Corporation of any tramway or tramways without the borough) properly chargeable to revenue;

(3) In providing the interest on any moneys borrowed by the Corporation under the Act of 1880;

(4) In providing the amount necessary to be paid into the sinking fund to provide for the repayment of the money so borrowed and in providing the amounts necessary for any repayments by instalments;

(5) In providing the interest on any moneys raised or borrowed by the Corporation under the powers of this Act;

(6) In providing the amount necessary to be paid into a sinking fund or redemption fund to provide for the repayment of the money so borrowed and in providing the amounts necessary for any repayments by instalments;

(7) The surplus after providing for such payments as aforesaid may be transferred by the Corporation if they think fit to a reserve fund or renewal fund for the purposes of the tramway undertaking or into a suspense account or in extending and developing the tramway undertaking or in increasing the amount required to be paid into any sinking fund or redemption fund in respect of money borrowed by the Corporation for tramway purposes but subject as herein-after mentioned no part of the surplus shall be paid to the credit of any rate until a reserve fund of at least five thousand pounds shall have been provided. Provided that if and whenever there shall be remaining in the hands of the Corporation any surplus on account of tramway revenue after payment of the charges and making the transfers and appropriations herein-before provided for

A.D. 1900.

such surplus shall be carried to the credit of the borough fund ;

- (8) In case the tramway revenue shall be insufficient to meet the charges upon it the deficiency shall be provided by the Corporation out of the borough fund and if that fund be insufficient for the purpose then by an increase of the current year's borough rate or by an increase of the next borough rate made after the deficit is ascertained provided that the amount so paid out of the borough rate may be replaced out of any future surplus as and when the Corporation may think fit.

Repayment
of borrowed
moneys.

84. All moneys borrowed under the powers of this Act for the purposes respectively mentioned in the following sub-sections of the sections of this Act the marginal note whereof is "Power to borrow" shall be repaid within any period not exceeding the following respective periods from the respective dates of the borrowing of such moneys respectively (that is to say) :—

For the purposes in sub-section (A) five years ;

For the purposes in sub-section (B) thirty years ;

For the purposes in sub-section (C) thirty years ;

For the purposes in sub-section (D) thirty years :

And such repayments shall be made either—

By equal yearly or half-yearly instalments of principal or of principal and interest ;

Or by means of a sinking fund ;

Or partly by such instalments and partly by a sinking fund.

The sinking fund shall be formed by setting apart in every year out of the tramway revenue such equal annual sums as will with the accumulations thereof at compound interest (at a rate not exceeding three pounds per centum per annum) be sufficient after payment of all expenses to pay off the moneys borrowed (so far as they are repayable by means of a sinking fund) within the periods by this Act prescribed in relation thereto respectively.

The first payment by instalments or to a sinking fund for repayment of borrowed moneys shall be made—

If borrowed for the construction of the tramways or for tramway purposes other than the purchase of any tramways acquired under the powers of this Act on the thirty-first day of March next following the date of the certificate of the Board of Trade that the tramways are fit for public traffic or within two years from the date of borrowing whichever shall be the earlier ; and

If borrowed for any other purpose on the thirty-first day of March next following the date of such borrowing ;

The sums to be annually appropriated and set apart to the sinking fund exclusive of accumulations shall be equal throughout the whole period allowed for repayment; A.D. 1900.

The Corporation may at any time apply the whole or any part of the sinking fund set apart by them in or towards the repayment of the borrowed moneys for the repayment of which the sinking fund is set apart in such order and manner as they deem proper :

Provided as follows :—

That in such case they pay into the sinking fund in each year afterwards and accumulate as herein-before prescribed until the whole of such borrowed moneys are discharged a sum equal to the interest which would have been produced by the sinking fund or part thereof so applied at the rate per centum on which the payments to the sinking fund are based ;

That whenever and so long as the securities constituting any sinking fund shall be equal in value at the market price of the day to the principal moneys then outstanding and to be paid off by means of such fund the Corporation may in lieu of investing the said yearly income apply the same in payment of the interest on such principal moneys and may during such periods discontinue the payment to such sinking fund of the yearly sums required to be so paid thereto ;

That if and so often as the interest in any year derived from investments of the sinking fund is not equal to the income which would be derived therefrom at the rate per centum per annum on which the equal annual payments to the sinking fund are based such deficiency shall be made good out of the funds and rates on the security of which the moneys to be repaid have been borrowed but if and so often as the said interest in any year exceeds such income the difference between such interest and income shall be applicable in reduction of the sums which would otherwise be required to be paid into the sinking fund.

85. All moneys paid into the sinking fund and the annual interest thereof shall unless applied as provided by the last preceding section of this Act be accumulated at compound interest and shall be as soon as may be invested in statutory securities. Investment of sinking fund.

86. If the Corporation pay off any part of any money borrowed by them under the powers of this Act otherwise than by means of instalments appropriations or annual repayments or a sinking fund or out of the proceeds of the sale exchange or disposition of lands Power to reborrow.

A.D. 1900. or out of fines or premiums on leases or other moneys received on capital account (not being borrowed moneys) they may reborrow the same and so from time to time. Provided that all moneys so reborrowed shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such reborrowing shall have been made and any amounts from time to time reborrowed shall be deemed to form the same loan as the moneys in lieu of which such reborrowing shall have been made and the obligations of the Corporation with respect to the repayment of such moneys shall not be in any way affected by such reborrowing.

Sinking fund may be adjusted in certain events.

87. If the Corporation out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board.

Corporation not to create irredeemable stock nor invest sinking fund in their own securities.

88. The Corporation shall not create or issue any irredeemable stock nor shall they invest the loans fund or any sinking fund in their own securities.

Protection of lenders from inquiry.

89. A person lending money to the Corporation shall not be bound to inquire as to the observance by the Corporation of any provision of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent by him or of any part thereof.

Annual return to Local Government Board with respect to sinking fund.

90.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated.

A.D. 1900.

by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

91. All expenses incurred by the Corporation in carrying into execution the provisions of this Act except such of them as are properly chargeable to capital and payable out of borrowed moneys and except expenses incurred for or in relation to tramways and markets shall be paid out of the district fund and general district rate.

Expenses of execution of Act.

All expenses incurred for or in relation to tramways shall be paid out of the tramway revenue and if in any year that revenue be insufficient the deficiency shall be made up out of the borough fund and borough rate.

PART XII.—MISCELLANEOUS.

92. The Corporation may pay or contribute towards the payment of one or more bands of music and vocalists to perform in any of the parks or places of public resort or recreation belonging to the Corporation. Such payment or contribution shall not in any one year exceed the sum of five hundred pounds and shall be paid out of the borough rate.

Bands of music.

93. If the Corporation work any tramways by means of electrical energy they may (subject to such regulations and conditions as

Power to Corporation to light

A.D. 1900. the Board of Trade may prescribe) employ such energy for the purpose of lighting the public streets of the borough and any public building quay dock market or other public property for the time being of the Corporation within the borough and any buildings or property used or occupied by the Corporation within the borough and they may also employ such energy as a motive power for all purposes of the Corporation for which such motive power is applicable:

public streets
&c. by
electrical
energy if
they generate
the same for
traction.

Provided that if the Corporation employ energy for the purpose of lighting or as a motive power—

(A) Such energy shall be supplied only by means of some system approved in writing by the Board of Trade and subject to any regulations or conditions made by the Board of Trade under the Electric Lighting Act 1882 for securing the safety of the public:

(B) All provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 for protection of the Postmaster-General and his telegraphic lines shall apply and have effect in relation to any work executed or intended to be executed or to any act or thing done or intended to be done for such purposes.

Sections of
Act of 1880
incorporated.

94. The following sections of the Act of 1880 (that is to say):—

- Section 150 (Corporation not to regard trusts);
- Section 164 (General provisions as to byelaws);
- Section 165 (Damages and charges in case of disputes to be settled by justices);
- Section 166 (Compensation how to be determined);
- Section 181 (Saving for indictments &c.);
- Section 183 (Judges &c. not disqualified);
- Section 184 (Powers of Act cumulative);

shall extend and apply to and for the purposes of this Act as if they had been re-enacted therein.

As to appeal.

95. Any person deeming himself aggrieved by any order judgment determination or requirement or the making or withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal.

96. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under those Acts shall extend and apply to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

A.D. 1900.
Audit of
accounts.

97.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in relation to any of the duties imposed on that Board under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by
and expenses
of Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

98. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate or out of moneys to be borrowed under the provisions of this Act as herein-before provided.

Costs of Act.

A.D. 1900. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

FORMER ACTS.

41 Victoria chapter lii. the Preston Tramways Act 1878.

43 & 44 Victoria chapter cxviii. the Preston Improvement Act 1880.

46 & 47 Victoria chapter cxv. the Ribble Navigation and Preston Dock Act 1883.

THE SECOND SCHEDULE.

NAMES AND BOUNDARIES OF THE NEW WARDS.

ST. JOHN'S WARD.

Includes all such portion of the borough as lies within a line drawn from the north-east corner of Avenham Street in an easterly direction along and including the south side of Church Street to the north-west corner of Stanley Street and from thence along and including the south-west side of Stanley Street and the west side of London Road to the nearest point of the River Ribble and from thence along the course of the river in a south-westerly westerly and north-westerly direction to a point thirty-three yards east of the Old Tram Bridge thence north-easterly to the south-easterly termination of Oxford Street thence northward along the centre line of Oxford Street and including the east side of Oxford Street and the north-east side of Syke Street and the east side of Avenham Street to Church Street.

AVENHAM WARD.

Includes all such portion of the borough as lies within a line drawn from the north-west corner of Avenham Street in a westerly direction along and including the south side of Fishergate and from thence in a south-westerly direction along and including the south side of Fishergate Hill to the nearest point of the River Ribble and from thence along the course of the river in a southerly north-easterly and easterly direction to a point thirty-three yards east of the Old Tram Bridge thence north-eastward to the south-easterly termination of Oxford Street thence northward along the centre of Oxford Street and along and including the west side of Oxford Street south-west side of Syke Street and west side of Avenham Street to Church Street.

CHRIST CHURCH WARD.

A.D. 1900.

Includes all such portion of the borough as lies within a line drawn from the south-west corner of Cheapside in a westerly direction along and including the north side of Fishergate and from thence in a south-westerly direction along and including the north side of Fishergate Hill to the nearest point of the River Ribble and from thence to the west side of the river and thence in a northerly westerly and north-westerly direction along the north-eastern boundary of the Holme thence in a south-westerly direction along the western boundary of the said Holme for a distance of fifty yards thence in a north-westerly direction along the iron fence bounding the lands of the Corporation and Mr. Lawrence Rawstorne for a distance of one hundred and thirty yards and from thence in a north-easterly direction to the north-west corner of Strand Road and from thence along the south side of Marsh Lane in an easterly direction to a point at the south-east corner of Wellfield Road and from thence in a northerly direction along and including the east side of Wellfield Road to a point at the south-west corner of Pedder Street and from thence in an easterly direction and including the south side of Pedder Street to a point at the south-east corner of Pedder Street and from thence in a southerly and easterly direction along and including the south side of Maudland Road and Fylde Street and from thence in a south-easterly direction along and including the west side of Friargate and the west side of Cheapside to Fishergate.

ASHTON WARD.

Includes all such portion of the borough as lies within a line drawn from the south-west corner of Wellfield Road in a westerly direction and including the north side of Marsh Lane to a point at the south-west corner of West Strand and from thence in a south-westerly direction across the River Ribble to a point in the iron fence which bounds the lands of the Corporation and Mr. Lawrence Rawstorne one hundred and thirty yards distant in a north-westerly direction from the western boundary of the Holme and from thence along the said fence in a westerly direction to the boundary dividing the townships of Penwortham and Howick and from thence in a north-westerly direction to Chain Caul and from thence in a north-easterly and easterly direction along the borough boundary to a point at the south-west corner of Pedders Lane and from thence in a northerly direction along and including the west side of Pedders Lane and along that side to a point where it joins Ashton Long Lane thence across Ashton Long Lane to a point where the western side of Cottam Lane meets Ashton Long Lane thence along the west side of Cottam Lane to a point where it crosses the borough boundary and thence in an easterly direction along the said boundary till it meets the west side of the Preston and Lancaster Canal thence in a southerly and easterly direction along the west side of the said canal to the bridge in Woodplumpton Road over the said canal thence in a southerly direction along and including the west side of Woodplumpton Road to the eastern termination of Ashton Long Lane thence in a south-easterly direction along and including the west side of Tulketh Brow to a point where Tulketh Brow meets the Preston and Wyre Railway thence in a straight line across the said railway thence along

A.D. 1900. the west side of the said railway to the north-west corner of Wellfield Road thence in a southerly direction along and including the west side of Wellfield Road to Marsh Lane.

MAUDLAND WARD.

Includes all such portion of the borough as lies within a line drawn from a point at the northern boundary of the borough on the north-west side of the Lancaster Canal in an easterly direction along the said boundary to a point one hundred and fifty yards south of Seymour Road and to the north-east side of the London and North Western Railway thence in a southerly direction along and including the east side of the said railway to the south side of Eldon Street and thence in an easterly direction along and including the south side of Eldon Street to the north-western corner of Green Bank Street thence in a southerly direction along and including the west side of Green Bank Street to the south-western corner of Green Bank Street thence along and including the south-west side of Fylde Road to a point at the north-east corner of Maudland Road thence in a westerly direction along and including the north side of Maudland Road to the north-east corner of Leighton Street thence in a northerly direction along and including the east side of Maudland Bank to the north-east corner of Pedder Street thence in a westerly direction along and including the north side of Pedder Street to the south-western corner of Ashton Street thence in a north-westerly direction along and including the western side of the Preston and Wyre Railway to a point where Wellington Road if continued in an easterly direction would meet the said railway thence across the said railway to a point in a straight line with Tulketh Brow thence in a northerly direction along and including the eastern side of Tulketh Brow to the eastern corner of Ashton Long Lane thence in a northerly direction along and including the eastern side of Woodplumpton Road to a point where the bridge in Woodplumpton Road crosses the canal thence in a westerly and northerly direction along and including the west side of the Preston and Lancaster Canal to the northern boundary of the borough.

MOORBROOK WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the northern boundary of the borough in Plungington Road North one hundred yards south of Watling Street Road West in an easterly direction along the northern boundary of the borough to a point one hundred and seventy yards south of Watling Street Road in Garstang Road thence in a southerly direction along and including the westerly side of Garstang Road and Moor Lane to a point at the north-eastern corner of Victoria Street thence in a westerly direction along and including the north side of Victoria Street to a point at the south-east corner of Adelphi Street thence in a northerly direction along and including the east side of Adelphi Street Plungington Road and Plungington Road North to the northern boundary of the borough.

ST. PETER'S WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the northern boundary of the borough one hundred and fifty yards

south of Seymour Road and on the north-eastern side of the London and North Western Railway in an easterly direction along the said boundary to a point one hundred yards south of Watling Street Road West in Plungington Road North thence in a southerly direction along and including the western side of Plungington Road North Plungington Road and Adelphi Street to the south-western corner of Victoria Street thence in an easterly direction along and including the south side of Victoria Street to the south-east corner of Victoria Street thence in a southerly direction along and including the western side of Moor Lane to the northern end of Friargate thence in a westerly and north-westerly direction along and including the north side of Fylde Street and east side of Fylde Road to the south-east corner of Green Bank Street thence in a northerly direction along and including the east side of Green Bank Street to a point in Eldon Street one hundred and twenty yards east of the London and North Western Railway bridge thence in a westerly direction along and including the northerly side of Eldon Street to the easterly side of the London and North Western Railway bridge thence in a northerly direction along and including the eastern side of the London and North Western Railway to the northern boundary of the borough.

PARK WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the northern boundary of the borough in Garstang Road one hundred and seventy yards south of Watling Street Road in an easterly direction along the northern boundary of the borough to a point two hundred yards south of Watling Street Road in Deepdale Road thence in a southerly direction along and including the western side of Deepdale Road to a point at the north-western corner of Meadow Street thence in a south-westerly direction along and including the northern side of Meadow Street to a point at the north-eastern corner of Park Road thence in a northerly direction along and including the eastern side of North Road to a point at the north-eastern corner of Kilshaw Street thence in a westerly direction along and including the northern side of Kilshaw Street and Crown Street to a point at the south-eastern corner of Harrison's Hill thence in a northerly direction along and including the eastern side of Harrison's Hill to a point at the north-eastern corner of Singleton Row thence in a westerly direction along and including the northern side of Corry Street to a point where Corry Street meets Moor Lane thence in a northerly direction along and including the east side of Moor Lane and Garstang Road to the northern boundary of the borough.

TRINITY WARD.

Includes all such portion of the borough as lies within a line drawn from the south-eastern corner of Cheapside in a northerly and north-westerly direction along and including the eastern side of Cheapside and the north-eastern side of Friargate to the south-eastern corner of Moor Lane thence in a northerly direction along and including the eastern side of Moor Lane to the north-western corner of North Street thence in an easterly direction

A.D. 1900. — along and including the southern side of Corry Street to the north-western corner of Harrison's Hill thence in a southerly direction along and including the western side of Harrison's Hill to the south-western corner of Crown Street thence in an easterly direction along and including the southern side of Crown Street and Kilshaw Street to the south-eastern corner of Kilshaw Street thence in a south-easterly direction along and including the western side of North Road to the north-western corner of Park Road thence in an easterly direction along and including the southern side of Meadow Street to the south-eastern corner of Meadow Street thence in a southerly direction along and including the western side of Deepdale Road to the north-eastern corner of Mill Bank thence in a south-westerly direction along and including the northern side of Mill Bank to the south-eastern corner of Park Road thence in a westerly direction along and including the northern side of Church Street and Fishergate to Cheapside.

DEEPDALE WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the northern boundary of the borough in Deepdale Road two hundred yards south of Watling Street Road in an easterly direction along the northern boundary of the borough to a point in Ribbleton Lane three hundred and seventy yards south of Gamull Lane End thence in a south-westerly direction along and including the north-western side of Ribbleton Lane to a point at the south-eastern corner of Deepdale Road thence in a northerly direction along and including the eastern side of Deepdale Road to the northern boundary of the borough.

RIBBLETON WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the eastern boundary of the borough in Ribbleton Lane and seven hundred and thirty yards south-westerly of Gamull Lane End in a south-easterly direction along the said boundary and including the northern side of the occupation road running from Ribbleton Lane to the south-western corner of Pope Lane thence continuing in a southerly direction along the said boundary to a point at the north-western corner of Brockholes Bridge thence in a westerly direction along and including the northern side of New Hall Lane to the south-eastern corner of Stanley Street thence in a north-westerly direction along and including the north-eastern side of Stanley Street to the south-eastern corner of Mill Bank thence in a north-easterly direction along and including the south-eastern side of Mill Bank and Ribbleton Lane to the eastern boundary of the borough.

FISHWICK WARD.

Includes all such portion of the borough as lies within a line drawn from a point on the eastern boundary of the borough at Brockholes Bridge thence in a southerly south-westerly westerly southerly south-westerly westerly and north-westerly direction to Walton Bridge thence in a north-westerly direction along and including the eastern side of London Road to the north-eastern corner of London Road thence in an easterly direction along and including

the southern side of New Hall Lane to the aforesaid point on the eastern boundary of the borough at Brockholes Bridge. A.D. 1900.

THE THIRD SCHEDULE.

LANDS FOR GENERATING STATION.

Certain lands belonging or reputed to belong to the Corporation situate in the county borough of Preston containing by admeasurement about 2,000 square yards and bounded on the north-west by Water Lane and on the south-east by the road to Albert Edward Dock and extending in a south-westerly direction from the junction of the said two roads.

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